

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Mehdi Righi	Team: Squad #15	CCRB Case #: 202201817	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Wednesday, 03/16/2022 3:46 PM, Wednesday, 03/16/2022 3:56 PM	Location of Incident: 1775 South Ave, Staten Island, NY 10314 121st Precinct stationhouse.	18 Mo. SOL 9/16/2023	Precinct: 121		
Date/Time CV Reported Wed, 03/16/2022 10:56 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 03/23/2022 9:05 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Michael Camerada	00214	964958	121 PCT
2. PO James Moussa	31415	963664	121 PCT
3. PO Matthew Kahn	03013	963585	121 PCT
4. SGT Olsen Hoxha	05542	949119	121 PCT
5. PO Dominic Darrigo	06831	965019	121 PCT
6. PO Domenick Camerada	16718	963893	121 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO David Vazquez	20393	959337	121 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO James Moussa	Abuse: Police Officer James Moussa drew his/her gun.	A . Within NYPD Guidelines
B . PO James Moussa	Force: Police Officer James Moussa pointed his/her gun at § 87(2)(b)	B . Unfounded
C . PO Dominic Darrigo	Discourtesy: Police Officer Dominic Darrigo spoke discourteously to § 87(2)(b)	C . Unfounded
D . SGT Olsen Hoxha	Abuse: Sergeant Olsen Hoxha did not obtain medical treatment for § 87(2)(b)	D . Unfounded
E . PO Matthew Kahn	Force: Police Officer Matthew Kahn used physical force against § 87(2)(b)	E . Miscellaneous - Subject Resigned
F . PO Michael Camerada	Force: Police Officer Michael Camerada used physical force against § 87(2)(b)	F . Miscellaneous - Subject Resigned
G . PO Domenick Camerada	Force: Police Officer Domenick Camerada used physical force against § 87(2)(b)	G . Unfounded
H . PO Michael Camerada	Discourtesy: Police Officer Michael Camerada spoke discourteously to § 87(2)(b)	H . Miscellaneous - Subject Resigned

Case Summary

On March 16, 2022, § 87(2)(b) filed a complaint with IAB via telephone. On March 23, 2022, the complaint was forwarded to the CCRB via IAB log #2022-6471.

On March 16, 2022, at approximately 3:46 PM, in the parking lot of the Staten Island DMV located at 1775 South Avenue, § 87(2)(b) was training and performing tricks with his dog. He had been at the location for approximately one hour and fifteen minutes. § 87(2)(b) was approached by multiple officers. Police Officer James Moussa from the 121st precinct drew and allegedly pointed his firearm at § 87(2)(b) (**Allegation A: Abuse of Authority – Gun Drawn; Within NYPD Guidelines and Allegation B: Force – Gun Pointed; Unfounded**). § 87(2)(b) placed his hands in the air and was arrested. § 87(2)(b) asked PO Darrigo why PO Moussa pointed his firearm at him. PO Darrigo allegedly told § 87(2)(b) “You want to be a dickhead?” and told § 87(2)(b) to “Shut up” (**Allegation C: Discourtesy – Word; Unfounded**). § 87(2)(b) was transported to the 121st Precinct stationhouse. Near the front entrance of the stationhouse, § 87(2)(b) knelt to ground, stated he could not breath, and requested to have mental health medical assistance. Sergeant Olsen Hoxha from the 121st precinct allegedly ignored § 87(2)(b)’s request for medical assistance and escorted him to the front desk (**Allegation D: Abuse of Authority – Refusal to obtain medical treatment; unfounded**). § 87(2)(b) told officers he did not wish to have his rings removed. Police Officer Matthew Kahn, Police Officer Michael Camerada, and Police Officer Domenick Camerada from the 121st precinct allegedly bent and twisted his fingers and wrist to remove the rings (**Allegations E and F: Force – Physical Force; Miscellaneous - Subject Resigned, and Allegation G: Force – Physical Force; Unfounded**). § 87(2)(b) told the officers at the desk that he was in pain and that he wanted medical attention. While removing a ring from § 87(2)(b)’s finger, PO Michael Camerada tells him to “stop fucking moving” (**Allegation H: Discourtesy – Word, Miscellaneous - Subject Resigned**). The officers allegedly ignored § 87(2)(b) and he was lodged in a cell (**Subsumed in Allegation D**). § 87(2)(b) was arrested § 87(2)(b)

The investigation obtained body worn camera footage of the incident (**BR 3, 8, 10, 11, 13**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer James Moussa drew his gun.

Allegation (B) Force: Police Officer James Moussa pointed his gun at § 87(2)(b)

§ 87(2)(b)’s telephone interview was conducted on April 25, 2022. PO Moussa was interviewed in-person at the CCRB on December 1, 2022. PO Vazquez was interviewed in-person at the CCRB on February 22, 2023. PO Domenick Camerada was interviewed in-person at the CCRB on April 20, 2023.

§ 87(2)(b) stated (**BR 1**) that he was exercising his pit bull, § 87(2)(b) for approximately one hour outside the Staten Island DMV located at 1775 South Avenue. § 87(2)(b) ran down the street with the intent for § 87(2)(b) to run after him. While he ran, § 87(2)(b) heard yelling coming from behind him. § 87(2)(b) could not discern what was yelled. § 87(2)(b) turned around and observed PO Moussa and several officers running after him and yelling for him to stop. PO Moussa drew his firearm and pointed it at § 87(2)(b). PO Moussa told § 87(2)(b) “Don’t move. Don’t move. Stay.” The officers did not provide additional instructions to § 87(2)(b). § 87(2)(b) immediately stopped running. § 87(2)(b) stood where he was and raised both of his hands in the air. § 87(2)(b)’s dog stood next to § 87(2)(b). § 87(2)(b) told the officers that his dog was friendly. PO Moussa continued to point his gun at § 87(2)(b). At this time, four to five additional police vehicles arrived,

and two of which were unmarked. An unspecified number of officers exited the vehicle and approached § 87(2)(b). § 87(2)(b) did not count the exact number of additional officers arrived on scene. PO Moussa continued to point his firearm at § 87(2)(b). § 87(2)(b) was focused on PO Moussa and did not want to make subtle movements. § 87(2)(b) felt that PO Moussa would shoot him if he did. PO Darrigo grabbed § 87(2)(b) from the back. § 87(2)(b) did not know where the officer grabbed him specifically but stated that he felt the sensation of the officers' hand all across the back of his upper body. PO Darrigo placed § 87(2)(b) in handcuffs.

PO Moussa stated (**BR 2**) that he was getting ready to leave traffic court when he observed § 87(2)(b) outside in the parking lot through the front windows, from a distance of a few feet. PO Moussa did not recall what § 87(2)(b) wore on the day of the incident but stated that he did not observe any budes on his body. There was a female individual in the vicinity of the location. PO Moussa would later learn that the female individual was § 87(2)(b)'s girlfriend. § 87(2)(b) was with a dog in the parking lot. The dog jumped in the air and bit a tree branch. PO Moussa believed that he could have issued § 87(2)(b) a summons for having his dog off its leash. PO Moussa did not know what type of dog it was but stated that it was a "decent size dog." PO Moussa had not interacted with § 87(2)(b) prior to the incident; however, he was familiar with § 87(2)(b) because at the time of the incident, PO Moussa worked at the 121st PCT Domestic violence unit and was aware of § 87(2)(b). PO Moussa knew that § 87(2)(b) had a probable cause I-card for violating an order of protection and had pointed a firearm at the camera during a FaceTime call with the victim. On March 12, 2022, PO Moussa was provided a photograph of § 87(2)(b) pointing a firearm at the cellphone in the video call. During PO Moussa's CCRB interview, he presented the photograph of § 87(2)(b) holding a firearm and probable cause wanted posters of § 87(2)(b). PO Moussa was provided with the picture by his sergeant. PO Moussa received the 911 call from the victim on the night § 87(2)(b) violated his order of protection, the job number was § 87(2)(b). The victim stated that § 87(2)(b) has access to firearms. PO Moussa stated that at this time, he made a phone call to inform an officer from his command that he observed § 87(2)(b). PO Moussa did not recall whom he called. PO Moussa suspected § 87(2)(b) to potentially be in possession of a firearm because he pointed a firearm at the victim a few days prior. PO Moussa did not have any other indication that § 87(2)(b) was carrying a firearm. The officer on the line told PO Moussa to keep an eye on § 87(2)(b) and not to engage. At an unspecified time, additional officers, PO Vasquez, PO Khan, PO Hoxha and possibly PO Camerada arrived in response to PO Moussa's call. PO Moussa did not discuss with officers how he planned to approach § 87(2)(b). PO Moussa observed § 87(2)(b) running across the parking lot. At this time, PO Moussa speculated that § 87(2)(b) was attempting to flee. PO Moussa ran after § 87(2)(b) and drew his firearm as a precaution. PO Moussa did not recall the exact moment he drew his firearm. PO Moussa initially stated that he pointed his firearm at § 87(2)(b) as he ran. PO Moussa gave the instructions, "Don't move, don't move" to § 87(2)(b). PO Moussa immediately stopped. PO Moussa describe the events that transpired to be "very quick." PO Moussa did not know where the other officers were at this time. At this time, other officers placed arrived at the location. The other officers handcuffed § 87(2)(b). PO Moussa did not mention when he holstered his firearm after drawing it. PO Moussa was then shown his body worn camera footage (**BR3**). Upon watching his initial contact with § 87(2)(b) PO Moussa amended his statement and stated that it does not appear that he pointed his firearm at § 87(2)(b).

PO Moussa's body worn camera (**BR 3**) shows him beginning to sprint at 0:56 inside a parking lot. The audio begins playing at 1:00. PO Moussa is seen holding a gun in his right hand as he continues running towards § 87(2)(b) at 1:02. PO Moussa requests to see § 87(2)(b)'s hands and instructs him not to move. § 87(2)(b) remains still. PO Moussa is not seen pointing his firearm at § 87(2)(b) as he gets closer. At 1:06, PO Darrigo drives up in a silver unmarked sedan and stops behind § 87(2)(b). He exits the driver's seat and quickly handcuffs § 87(2)(b) from behind. At

1:11, § 87(2)(b) asks PO Moussa what is going on. PO Moussa informs § 87(2)(b) that he is under arrest because he has a warrant out. PO Moussa's firearm is not seen for the remainder of the video. PO Moussa is not observed pointing his firearm at § 87(2)(b) at any point during the video.

Event information § 87(2)(b) (BR 4) references a 911 call in which a female caller states that her child's father violated an order of protection. The child father was seen circling around the block multiple times. The female caller states that the male lives at § 87(2)(b) in Staten Island. The Event also mentions that the male does have access to firearms.

A photograph provided by PO Moussa (BR 5) shows § 87(2)(b) pointing a firearm at the camera.

I-Card # § 87(2)(b) (BR 6) designates § 87(2)(b) as a perpetrator with a probable cause to arrest. § 87(2)(b) was charged § 87(2)(b) § 87(2)(b)'s address on the I-Card matches the address provided by the female caller in the event information.

According to Patrol Guide Procedure 221-01 (BR 7), the decision to display or draw a firearm should be based on an articulable belief that the potential for serious physical injury is present. When a uniformed member of the service determines that the potential for serious physical injury is no longer present, the uniformed member of the service will holster the firearm as soon as practicable.

It is undisputed that PO Moussa drew his firearm. His body worn camera video captured him holding a gun in his right hand as he sprinted towards § 87(2)(b) § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

It is therefore recommended that **Allegation A** be closed as within *NYPD guidelines*.

§ 87(2)(b) specifically alleged that PO Moussa pointed his firearm at him. In the body worn camera footage obtained by the investigation, PO Moussa does not point his firearm at § 87(2)(b) at any point during their interaction.

It is therefore recommended that **Allegation B** be closed as *unfounded*.

Allegation (C) Discourtesy: Police Officer Dominic Darrigo spoke discourteously to § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) stated (BR 1) that after he was handcuffed, he was search by multiple officers. PO Darrigo removed a cellphone from § 87(2)(b)'s pocket and asked him what his phone number was. § 87(2)(b) told PO Darrigo that was his wife's cellphone. § 87(2)(b) asked PO Darrigo why PO Moussa pointed his firearm at him. PO Darrigo asked § 87(2)(b) "You want to be a dickhead?" and told § 87(2)(b) to "Shut up." PO Darrigo escorted § 87(2)(b) into a vehicle.

PO Darrigo's body worn camera (BR 8) shows him exiting his vehicle at 0:58. He proceeds to quickly handcuff § 87(2)(b) from behind. PO Darrigo begins searching § 87(2)(b) at 1:17. He checks § 87(2)(b)'s waistband followed by a frisk of his torso and legs. Sgt. Anthony Largo hands

PO Darrigo a cellphone at 1:37. PO Darrigo removes a second cellphone from § 87(2)(b)'s right pants pocket. § 87(2)(b) states that a cellphone belongs to his wife. At 2:22, § 87(2)(b) asks his wife to call his lawyer and inform them of his arrest. The wife replies that she does not have his phone. § 87(2)(b) informs her that PO Darrigo is holding their phone. PO Darrigo insists on holding onto both phones and instructs § 87(2)(b)'s wife to pick up the phones at the precinct. At 3:11, § 87(2)(b) asks which precinct he has a warrant in. PO Darrigo replies it is the 121st precinct. PO Darrigo does not interact with § 87(2)(b) for the remainder of the video. § 87(2)(b) is placed in the rear passenger seat of a marked SUV at 3:28. § 87(2)(b) is not heard asking PO Darrigo why PO Moussa pointed his gun at him. PO Darrigo does not call § 87(2)(b) a “dickhead” or tell him to “shut up.” No officer is heard calling § 87(2)(b) a “dickhead” or telling him to “shut up.”

The alleged comments are not heard during the interaction between § 87(2)(b) and PO Darrigo. No officer is heard using profanity or discourteous language within the entirety of the video.

It is therefore recommended that **Allegation C** be closed *as unfounded*.

Allegation (D) Abuse of Authority: Sergeant Olsen Hoxha did not obtain medical treatment for § 87(2)(b)

§ 87(2)(b) stated (**BR 1**) that upon arrival at the station house, § 87(2)(b) had a panic attack and knelt on the ground at the building entrance and refused to enter. § 87(2)(b) told Sgt. Hoxha, that he was not going inside the station house because he did not know why he was arrested. § 87(2)(b) told Sgt. Hoxha that he wanted to speak with a supervisor. § 87(2)(b) told the officers that he could not breathe and requested for mental health assistance and for an ambulance to be called. Sgt. Hoxha ignored § 87(2)(b)'s requests, picked him up and escorted him to the front desk. At the front desk, officers began removing rings from his fingers. § 87(2)(b) tried to tell the officers that his rings did not come off, but officers ignored his comment as they squeezed and twisted his fingers. § 87(2)(b) told the officers at the desk that he was in pain and that he wanted medical attention. § 87(2)(b) was ignored and then lodged in a cell. § 87(2)(b) was asked by two unidentified sergeants if he wanted to go to the hospital a couple of hours after he made the request at the front desk. § 87(2)(b) refused to go with the two sergeants from the 121st precinct because he did not like their precinct. § 87(2)(b) was transported to the 120th Precinct stationhouse later that night. § 87(2)(b) described the officers at the 120th precinct stationhouse as friendly and respectful. A captain at the 120 Precinct made the decision to take § 87(2)(b) to the hospital. § 87(2)(b) was taken by officers to § 87(2)(b) that same night. § 87(2)(b) stated that there was nothing wrong with his hand but noted that it was black and blue, and felt funny. No medical exams were performed. § 87(2)(b) was offered Ibuprofen, but he denied it because he did not like it. § 87(2)(b) was returned to the 120th precinct stationhouse after he was checked out at the hospital. The investigation was unable to obtain any medical records because § 87(2)(b) did not respond to requests for completed HIPAA forms (**BR 18**).

PO Vazquez stated (**BR 9**) that § 87(2)(b) asked him to turn on his body worn camera after exiting the police vehicle outside the stationhouse. PO Vazquez informed § 87(2)(b) that his camera was on the whole time during the ride. § 87(2)(b) knelt on the ground. § 87(2)(b) told the officers that if they continued to mistreat him, he would make things difficult for them. § 87(2)(b) added that he would act like a child and force officers to listen to him the entire day. PO Vazquez did not recall § 87(2)(b) having a panic attack. PO Vazquez heard § 87(2)(b) mention he could not breathe as they walked towards the entrance of the stationhouse. PO Vazquez did not observe signs of troubled breathing from § 87(2)(b).

PO Vazquez's body worn camera (**BR 10**) shows § 87(2)(b) exiting a marked SUV outside the

121st precinct stationhouse at 10:38. § 87(2)(b) asks PO Vazquez and PO Kahn to turn their cameras on. The officers inform § 87(2)(b) that their cameras are on. § 87(2)(b) proceeds to kneel on the ground and demands answers related to his arrest. At 11:00, § 87(2)(b) asks Sgt. Hoxha what he is being arrested for. Sgt. Hoxha replies that he has an I-Card and proceeds to pull § 87(2)(b) up by his right arm. PO Kahn joins Sgt. Hoxha and pulls § 87(2)(b) up by his left arm. The officers lift him up onto his feet. § 87(2)(b) is heard saying he “I can’t breathe” twice at 11:06. No officer is seen touching § 87(2)(b)’s neck or chest. § 87(2)(b) does not request medical attention. No officer is heard asking § 87(2)(b) if he needs medical attention. Seconds later, § 87(2)(b) asks officers why they dealt with him with guns instead of speaking to him first. § 87(2)(b) does not exhibit any shortness of breath as he complains about the manner in which he was arrested. The officers escort § 87(2)(b) into the stationhouse at 11:12. § 87(2)(b) arrives at the front desk at 11:55. Officers proceed to remove his jewelry. § 87(2)(b) complains of a broken hand at 13:57. PO Michael Camerada informs § 87(2)(b) that his rings need to come off. § 87(2)(b) turns his body to face the officers and moves his hands away from them. Multiple officers grab § 87(2)(b) and instruct him to stop moving. § 87(2)(b) continues to protest the removal of his rings. At 14:30, § 87(2)(b) complains about his wrist and states that officers are “breaking his hand even more.” An officer is heard telling § 87(2)(b) to stop clutching his fingers. At 15:06, officers are no longer seen interacting with § 87(2)(b)’s hands. At 15:52, PO Kahn begins walking away from the front desk with § 87(2)(b). § 87(2)(b) does not request medical attention for his hand at any point during his interactions with officers at the front desk. At 16:13, § 87(2)(b) enters a room with cells PO Michael Camerada and PO Kahn.

PO Domenick Camerada stated (BR 12) did not hear § 87(2)(b) request medical attention after the rings were removed from his fingers. PO Domenick Camerada did not hear any officer ask § 87(2)(b) if he needed medical attention. PO Domenick Camerada did not ask § 87(2)(b) if he needed medical attention. PO Domenick Camerada did not observe any visible injuries on § 87(2)(b)’s wrist and hands.

PO Kahn’s body worn camera (BR 11) provides an alternate angle of the § 87(2)(b)’s interaction with officers outside the stationhouse. § 87(2)(b) leans on the ground at 10:46. The footage is consistent with the content captured by PO Vazquez. § 87(2)(b) does not show signs of difficult breathing. Officers are not seen making physical contact with § 87(2)(b)’s neck and torso.

§ 87(2)(b) stated that he was ignored by officers when he requested medical attention outside the stationhouse and at the stationhouse front desk. Outside the stationhouse, body worn video shows § 87(2)(b) saying he could not breathe. However, he does not request medical attention. PO Vazquez heard § 87(2)(b) mention he could not breathe but did not observe signs of troubled breathing. § 87(2)(b) does not exhibit signs or respiratory distress and proceeds to complain about his arrest. Review of body worn camera footage also shows that § 87(2)(b) did not make any request for medical attention during his police interaction at the stationhouse front desk. Furthermore, PO Domenick Camerada did not hear § 87(2)(b) make the request nor did he observe any visible injuries on his wrist or hands.

It is therefore recommended **Allegation D** be closed as **unfounded**.

Allegation (E) Force: Police Officer Matthew Kahn used physical force against § 87(2)(b)

Allegation (F) Force: Police Officer Michael Camerada used physical force against § 87(2)(b)

Allegation (G) Force: Police Officer Domenick Camerada used physical force against § 87(2)(b)

§ 87(2)(b) stated (**BR 1**) that when he arrived at the 121st precinct stationhouse, a white-shirted officer at the desk. The white shirt officer asked § 87(2)(b) for his name and date of birth. § 87(2)(b) did not answer. At the time, § 87(2)(b) wore a necklace and two rings on his left and right ring fingers. § 87(2)(b) told the officers that he did not wish to have his jewelry removed. The officers refused § 87(2)(b)'s request and removed his necklace. The officers removed one of § 87(2)(b)'s rings but could not remove the other. § 87(2)(b) stated that one of his rings was fitted tightly around his ring finger and did not come off. PO Moussa squeezed and bent § 87(2)(b)'s hand back and front and spread apart § 87(2)(b)'s fingers to remove the stuck ring. § 87(2)(b) stated that his knuckles were swollen as of result of white shirt officer's action. § 87(2)(b) told the officers at the desk that he was in pain and that he wanted medical attention. The officers ignored § 87(2)(b) and he was lodged. § 87(2)(b) did not respond to requests for HIPAA release forms (**BR 18**).

PO Domenick Camerada stated (**BR 12**) that he saw § 87(2)(b) already standing at the front desk when he arrived at the stationhouse. § 87(2)(b) was accompanied by PO Michael Camerada and PO Mathew Kahn. They were standing on each side of § 87(2)(b). PO Domenick Camerada stood behind them and observed § 87(2)(b). They tried getting § 87(2)(b)'s pedigree information, but § 87(2)(b) refused to cooperate. § 87(2)(b) started acting irate by flailing his arms while he was handcuffed, bumping into officers, and yelling in their faces when PO Michael Camerada and PO Kahn started removing his rings from his fingers. PO Domenick Camerada did not recall why he refused to have his jewelry removed. The rings needed to be removed because they items prohibited form the cell area. The desk officer asked § 87(2)(b) to stop moving and to face forward. § 87(2)(b) did not listen. PO Domenick Camerada walked up to the front desk and placed his left arm on the crease of § 87(2)(b)'s elbow to hold him from further swinging into the other officers. PO Domenick Camerada held § 87(2)(b) for approximately 30 seconds. PO Domenick Camerada modified his hold when § 87(2)(b) made additional flailing movements. PO Domenick Camerada proceeded to grab the area above § 87(2)(b)'s right wrist with his left hand and continued holding the crease of § 87(2)(b)'s left elbow. PO Domenick Camerada maintained this hold for 10 seconds. PO Domenick Camerada did not observe any visible injuries on his hand. PO Domenick Camerada did not remove any jewelry from § 87(2)(b). § 87(2)(b) complained that his wrist was broken. PO Domenick Camerada did not observe any visible injuries on § 87(2)(b)'s wrist and hands. PO Domenick Camerada modified his grip to stabilized § 87(2)(b)'s arm to prevent further flailing or sustaining injuries. PO Domenick Camerada denied twisting § 87(2)(b)'s wrist while he gripped it. § 87(2)(b) bent his wrist upward towards his forearm so that he could grab PO Domenick Camerada fingers or hand. § 87(2)(b) was escorted to a cell after his jewelry was removed.

PO Kahn's body worn camera footage (**BR 11**) shows that PO Kahn, PO Domenick Camerada, and PO Michael Camerada were involved with the removal of § 87(2)(b)'s rings. PO Moussa and the white shirt officer did not make physical contact with § 87(2)(b) at the front desk. At 13:21, PO Vazquez attempts to remove § 87(2)(b)'s necklace. § 87(2)(b) steps back away from PO Vazquez and says it is his little brother's chain. PO Vasquez explains that he needs to take it. Officers tell § 87(2)(b) to stop moving. At 13:40, PO Vazquez place the necklace in a plastic bag. § 87(2)(b) tells PO Kahn that his rings do not come off. PO Kahn tells § 87(2)(b) they need to come off. At 13:48, PO Michael Camerada is seen touching the ring finger on § 87(2)(b)'s right hand. PO Michael Camerada tries to remove the ring, but § 87(2)(b) pulls his hand away and states that his hand is broken. At 14:01, PO Kahn is touching § 87(2)(b)'s ringer finger on his left hand. § 87(2)(b) turns his body to face PO Michael Camerada and states that his hand is broken. PO Michael Camerada tells him to "stop fucking moving." At 14:07, PO Domenick Camerada is seen grabbing § 87(2)(b)'s right arm. At 14:09, PO Kahn and PO Michael Camerada are seen rotating the rings on each of § 87(2)(b)'s ring fingers. They do not twist his fingers. § 87(2)(b) continues to state that his hand is broken and complains about his wrist. At 14:33, an officer asks § 87(2)(b) to stop

clenching his fingers. § 87(2)(b) says, “they’re hurting me.” PO Kahn asks § 87(2)(b) to open his finger straight. At 14:41, PO Domenick Camerada lift § 87(2)(b) right wrist to allow PO Michael Camerada to remove the ring. § 87(2)(b) says repeatedly, “they are breaking my hands even more.” PO Michael Camerada and PO Kahn continue to rotate the rings on § 87(2)(b) s ring fingers. PO Kahn removes § 87(2)(b) left ring at 14:49 and places it into a plastic bag in the front desk. § 87(2)(b) is heard saying at 14:57 “stop bending my wrist like that. PO Domenick Camerada tells § 87(2)(b) to relax. At 15:06, officers are no longer seen interacting with § 87(2)(b) s hands. At 15:52, PO Kahn begins walking away from the front desk with § 87(2)(b) At 16:13, § 87(2)(b) enters a room with cells PO Michael Camerada and PO Kahn.

PO Domenick Camerada’s body worn camera footage (**BR 13**) shows him grabbing § 87(2)(b) s hands at 2:58. At 3:50, PO Camerada in seen holding § 87(2)(b) s right wrist with his left hand. § 87(2)(b) arms are behind his back. § 87(2)(b) yells at officer to stop bending his wrist at 3:52. The video captures officers holding § 87(2)(b) wrist and not bending it. At 3:59, PO Camerada releases § 87(2)(b) ’s wrist.

Given that PO Matthew Kahn and PO Michael Camerada have resigned from the service, it is recommended that **Allegation E** and **Allegation F** be closed as **Miscellaneous – Subject Resigned**.

PO Domenick Camerada denied intentionally twisting or bending § 87(2)(b) s hand. PO Domenick Camerada held § 87(2)(b) s hand because he kept moving his body and flailing his arms which made it difficult for PO Michael Camerada and PO Kahn to remove the rings. The video captures officers holding § 87(2)(b) wrist and not bending it. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is recommended that **Allegation G** be closed as **Unfounded**.

Allegation (H) Discourtesy: Police Officer Michael Camerada spoke discourteously to § 87(2)(b)

§ 87(2)(b)

PO Kahn’s body worn camera footage (BR 11) shows PO Michael Camerada telling § 87(2)(b) to “stop fucking moving” at 14:02. This remark was made at the front desk of the 121st precinct stationhouse while officers attempted to removing rings from § 87(2)(b) s fingers.

Given that PO Michael Camerada have resigned from the service, it is recommended that **Allegation H** be closed as **Miscellaneous – Subject Resigned**.

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to two of CCRB complaints and has been named as a victim in thirteen allegations (**BR 14**):
 - § 87(2)(b)
 - § 87(2)(b)
 - § 87(2)(b)
- PO Matthew Kahn has been a member-of-service for an undefined period of time, and this is the first CCRB complaint to which he has been a subject.
- PO Dominic Darrigo has been a member of service for five years and has been a subject in six CCRB complaints and twenty-two allegations, none of which were substantiated. § 87(2)(g)
- § 87(2)(g)

- Sgt. Olsen Hoxha has been a member of service for 12 years and has been a subject in three CCRB complaints and seven allegations, none of which were substantiated. § 87(2)(g)
- PO Michael Camerada has been a member of service for an undefined period of time and has been a subject in three CCRB complaints and three allegations, none of which were substantiated. § 87(2)(g)
- PO Domenick Camerada has been a member of service for five and has been a subject in four CCRB complaints and seven allegations, none of which were substantiated. § 87(2)(g)
- PO James Moussa has been a member of service for six and has been a subject in seven CCRB complaints and eighteen allegations, of which one was substantiated:
 - 201904273 involved a substantiated allegation of physical force against PO Moussa. The Board did not recommend discipline and the NYPD imposed formalized training.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of May 4, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (**BR 15**).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Squad: 15

Investigator:	<u>Mehdi Righi</u>	<u>Inv. Mehdi Righi</u>	<u>06/01/2023</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u></u>	<u>IM Simon Wang</u>	<u>06/01/23</u>
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date